Supreme Court, U.S.
FILED
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(19)

No. 98-1811

IN THE

Supreme Court of the United States

Alexis Geier, *et al.*,

Petitioners,

v.

American Honda Motor Company, Inc., *et al.*,

Respondents.

On Writ of Certiorari to the United States Court of Appeals for the District of Columbia Circuit

JOINT APPENDIX

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PETITION FOR CERTIORARI FILED MAY 5, 1999
WRIT OF CERTIORARI GRANTED SEPTEMBER 10, 1999

74PP

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UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

ALEXIS GEIER and WILLIAM GEIER and CLAIRE GEIER, All at: 5109 Manning Pl., Washington, D.C. 20016	
Plaintiffs	
v.	Civil No. 95-CV- 0064 (WBB)
AMERICAN HONDA MOTOR CO. INC., Serve: CT Corp., Inc. 1025 Vermont Ave., NW Washington, DC 20005	
and	
HONDA OF AMERICA MANUFACTURING, INC. Serve: Statutory Agent Corp. 52 E. Gay St. Columbus, Ohio 43215	
and	
HONDA MOTOR COMPANY LTD., Serve President or his designated representative 2-1-1 Minami-Aoyama, Minato-Ku Tokyo, Japan 107	
Defendants.	

COMPLAINT

The plaintiff Alexis Geier, by and through counsel, sues the defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and Honda Motor Co., Ltd. and for her cause of action states as follows:

1. The plaintiff, Alexis Geier, is a citizen of the District of Columbia.

2. Defendants American Honda Motor Co., Inc. and Honda of America Manufacturing, Inc. are corporations regularly doing business in the District of Columbia.

3. Defendant Honda Motor Co., Ltd. is a foreign corporation, headquartered in Tokyo, Japan, regularly doing business in the District of Columbia.

4. On or about January 12, 1992 at approximately 10:32 p.m., plaintiff Alexis Geier was the driver and occupant in the left, front driver's seat of a 1987 Honda Accord, four door sedan, serial number L6196563 which had been designed, manufactured and distributed by defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc., and/or Honda Motor Co., Ltd., when the vehicle collided with a tree on the 4900 block of MacArthur Boulevard, near its intersection with Ashley Street, in the District of Columbia.

5. At the time of the accident, the vehicle in question was owned by Thomas J. Whitehead, a resident of the District of Columbia.

6. At the time of the accident, plaintiff Alexis Geier was a minor. She reached the age of majority on June 29, 1992.

7. At the time of the accident, plaintiff Alexis Geier was using the shoulder and lap belt that had been designed, assembled, tested and installed by defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and/or Honda Motor Co., Ltd. for the driver's seating position of the 1987 Honda Accord.

8. The defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and Honda Motor Co., Ltd. had a duty to design, manufacture, assemble, install and test a passenger seating and restraint system for the driver's seating position of the 1987 Honda Accord which was reasonably safe for use by its occupants, including plaintiff Alexis Geier.

9. Defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and Honda Motor Co., Ltd. knew or should have known on the basis of the existing engineering, medical, safety and other scientific and technical literature through 1987 that a failure of the driver's seating and restraint systems could cause severe injuries in the event of an emergency.

10. Defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and Honda Motor Co., Ltd. had a duty to design, manufacture, distribute and sell motor vehicles which contain driver's seating systems which provide suitable restraint and protection to an occupant at all times.

11. Defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and Honda Motor Co., Ltd. had a duty to design, manufacture, distribute and sell a motor vehicle with an effective and safe passive restraint system, including, but not limited to, airbags and to keep abreast of and take into account the state of the art in the

science and engineering of safe passive restraint system, including, but not limited to, airbags.

12. Defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and Honda Motor Co., Ltd. had a duty to design, manufacture, distribute and sell a motor vehicle which incorporated therein the state of the art for the automotive industry in the science and engineering of passive restraint systems, including, but not limited to, airbags.

13. Defendants American Honda Motor Co., Inc., Honda of America Manufacturing, Inc. and Honda Motor Co., Ltd. knew or should have known on the basis of the existing engineering, medical, safety and other scientific and technical literature through 1987 that the absence of a passive restraint system which includes airbags could cause severe injuries, in the event of a collision.

14. The driver's seating and restraint systems of the 1987 Honda Accord failed to provide suitable restraint at all times, including during the collision in which the vehicle was involved on January 12, 1992.

15. Upon the occurrence of that collision, the seat back of the left, driver's side seat broke.

16. Upon the occurrence of that collision, the left, driver's side seat broke off of its track.

17. Upon the occurrence of that collision, there was no airbag installed in the front, driver's side of the vehicle.

18. As a result, plaintiff Alexis Geier suffered serious and grievous injuries caused by the driver's seating and restraint systems failure to provide suitable restraint and protection to

plaintiff.

19. As a further result, plaintiff Alexis Geier suffered serious and grievous injuries caused by the absence of a passive restraint system that included airbags.

20. As a direct and proximate result of the aforesaid failure, plaintiff Alexis Geier suffered injury to all parts of her body, some of which are believed to be permanent, especially to her head, brain, mouth, legs, chest, neck, and back, suffered and shall suffer great pain of body and mind, incurred and shall incur medical and out of pocket expenses, suffered an interruption of her education, suffered a reduced earning capacity, was required to undergo multiple surgeries, suffered significant scarring and disfigurement, and suffered significant emotional and mental stress.

21. As a further direct and proximate result of the aforesaid failure, plaintiffs William Geier and Claire Geier, as parents of Alexis Geier incurred medical and out of pocket expenses on behalf of their daughter during her minority and lost time and income from work during their daughter's minority to care for and assist her.

COUNT I

(Negligence - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

22. Defendant American Honda Motor Co., Inc. owed a duty of care to plaintiff Alexis Geier.

23. Defendant American Honda Motor Co., Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord with inadequate passenger seating and restraint systems and negligently failed to warn the public, including plaintiff Alexis Geier, of the defective condition of the driver's seating and restraint systems.

24. As a direct and proximate result of defendant American Honda Motor Co., Inc.'s negligence, plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant American Honda Motor Co., Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT II

(Negligence - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

25. Defendant Honda of America Manufacturing, Inc. owed a duty of care to plaintiff Alexis Geier.

26. Defendant Honda of America Manufacturing, Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord with inadequate passenger seating and

restraint systems and negligently failed to warn the public, including plaintiff Alexis Geier, of the defective condition of the driver's seating and restraint systems.

27. As a direct and proximate result of defendant Honda of America Manufacturing, Inc.'s negligence, plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda of America Manufacturing, Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT III

(Negligence - Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

28. Defendant Honda Motor Co., Ltd. owed a duty of care to plaintiff Alexis Geier.

29. Defendant Honda Motor Co. Ltd. Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord with inadequate passenger seating and restraint systems and negligently failed to warn the public, including plaintiff Alexis Geier, of the defective condition of the driver's seating and restraint systems.

30. As a direct and proximate result of defendant

Honda Motor Co. Ltd.'s negligence, plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda Motor Co. Ltd. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT IV

(Negligence - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

31. Defendant American Honda Motor Co., Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord with inadequate passenger seating and restraint systems and negligently failed to warn the public, including plaintiff Alexis Geier, of the defective condition of the driver's seating and restraint systems.

32. As a direct and proximate result of defendant American Honda Motor Co., Inc.'s negligence, plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000 plus costs and interest.

COUNT V

(Negligence - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

33. Defendant Honda of America Manufacturing, Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord with inadequate passenger seating and restraint systems and negligently failed to warn the public, including plaintiff Alexis Geier, of the defective condition of the driver's seating and restraint systems.

34. As a direct and proximate result of defendant Honda of America Manufacturing, Inc.'s negligence, plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda of America Manufacturing, Inc. in the amount of $500,000 plus costs and interest.

COUNT VI

(Negligence - Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

35. Defendant Honda Motor Co. Ltd. Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord with inadequate passenger seating and restraint systems and negligently failed to warn the public, including plaintiff Alexis Geier of the defective condition of the driver's seating and restraint systems.

36. As a direct and proximate result of defendant Honda Motor Co. Ltd.'s negligence, plaintiffs William Geier and Claire were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda Motor Co. Ltd. in the amount of $500,000.00 plus costs and interest.

COUNT VII

(Breach of Warranty - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

37. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle, including the driver's seating and restraint systems, were of merchantable quality and were fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

38. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant American Honda Motor Co., Inc. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

39. Defendant American Honda Motor Co., Inc. breached its warranty in that the seating systems of the 1987 Honda Accord were not safe for their intended use or of merchantable quality as warranted by defendant Honda Motor Co. Ltd. in that the seating and restraint systems failed to reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, the driver's seat back broke and the driver's seat left its track, causing serious injuries to plaintiff Alexis Geier.

40. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant American Honda Motor Co., Inc., plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant American Honda Motor Co., Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT VIII

(Breach of Warranty - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and

incorporate them by reference and further state as follows:

41. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle, including the driver's seating and restraint systems, were of merchantable quality and were fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

42. Plaintiff Alexis Geier relied upon the skill and judgment of defendant Honda of America Manufacturing, Inc. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

43. Defendant Honda of America Manufacturing, Inc. breached its warranty in that the seating systems of the 1987 Honda Accord were not safe for their intended use or of merchantable quality as warranted by defendant Honda Motor Co. Ltd. in that the seating and restraint systems failed to reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, the driver's seat back broke and the driver's seat left its track, causing serious injuries to plaintiff Alexis Geier.

44. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant Honda of America Manufacturing, Inc., plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda of

America Manufacturing, Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT IX

(Breach of Warranty-Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

45. Defendant Honda Motor Co. Ltd. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle, including the driver's seating and restraint systems, were of merchantable quality and were fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

46. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant Honda Motor Co. Ltd. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

47. Defendant Honda Motor Co. Ltd. breached its warranty in that the seating systems of the 1987 Honda Accord were not safe for their intended use or of merchantable quality as warranted by defendant Honda Motor Co. Ltd. in that the seating and restraint systems failed to reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, the driver's seat back broke and the driver's seat left its track, causing serious injuries to plaintiff

Alexis Geier.

48. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant Honda Motor Co. Ltd., plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda Motor Co. Ltd. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT X

(Breach of Warranty - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

49. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle, including the driver's seating and restraint systems, were of merchantable quality and were fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

50. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant American Honda Motor Co., Inc. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable

intended manner.

51. Defendant American Honda Motor Co., Inc. breached its warranty in that the seating systems of the 1987 Honda Accord were not safe for their intended use or of merchantable quality as warranted by defendant American Honda Motor Co., Inc. in that the seating and restraint systems failed to reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, the driver's seat back broke and the driver's seat left its track, causing serious injuries to plaintiff Alexis Geier.

52. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant American Honda Motor Co., Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XI

(Breach of Warranty - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

53. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff

Alexis Geier, that said vehicle, including the driver's seating and restraint systems, were of merchantable quality and were fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

54. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant Honda of America Manufacturing, Inc. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

55. Defendant Honda of America Manufacturing, Inc. breached its warranty in that the seating systems of the 1987 Honda Accord were not safe for their intended use or of merchantable quality as warranted by defendant Honda of America Manufacturing, Inc. in that the seating and restraint systems failed to reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, the driver's seat back broke and the driver's seat left its track, causing serious injuries to plaintiff Alexis Geier.

56. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant Honda of America Manufacturing, Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda of America Manufacturing, Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XII
(Breach of Warranty-Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

57. Defendant Honda Motor Co. Ltd. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle, including the driver's seating and restraint systems, were of merchantable quality and were fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

58. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant Honda Motor Co. Ltd. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

59. Defendant Honda Motor Co. Ltd. breached its warranty in that the seating systems of the 1987 Honda Accord were not safe for their intended use or of merchantable quality as warranted by defendant Honda Motor Co. Ltd. in that the seating and restraint systems failed to reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, the driver's seat back broke and the driver's seat left its track, causing serious injuries to plaintiff Alexis Geier.

60. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant Honda

Motor Co. Ltd., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XIII

(Strict Liability-American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

61. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle which contained component parts, namely, the driver's seat, which was defective and inherently dangerous to the user, including plaintiff Alexis Geier, in that said systems could and did cause serious injuries to their user when the vehicle was involved in an impact or collision.

62. Defendant American Honda Motor Co., Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the driver's seat.

63. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant American Honda Motor Co., Inc., plaintiff Alexis Geier suffered damages as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant American Honda Motor Co., Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XIV

(Strict Liability-Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

64. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle which contained component parts, namely, the driver's seat, which was defective and inherently dangerous to the user, including plaintiff Alexis Geier, in that said systems could and did cause serious injuries to their user when the vehicle was involved in an impact or collision.

65. Defendant Honda of America Manufacturing, Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the driver's seat.

66. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda of America Manufacturing, Inc., plaintiff Alexis Geier suffered damages as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant American Honda Motor Co., Inc. in the amount of $10,000,000.00 as

compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XV
(Strict Liability-Honda Motor Co., Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

67. Defendant Honda Motor Co., Ltd. designed, manufactured, assembled, tested, assembled and marketed a vehicle which contained component parts, namely, the driver's seat, which was defective and inherently dangerous to the user, including plaintiff Alexis Geier in that said systems could and did cause serious injuries to their user when the vehicle was involved in an impact or collision.

68. Defendant Honda Motor Co., Ltd. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the driver's seat.

69. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda Motor Co., Ltd., plaintiff Alexis Geier suffered damages as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda Motor Co., Ltd. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XVI
(Strict Liability-American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

70. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle which contained component parts, namely, the driver's seat, which was defective and inherently dangerous to the user, including plaintiff Alexis Geier, in that said systems could and did cause serious injuries to their user when the vehicle was involved in an impact or collision.

71. Defendant American Honda Motor Co., Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the driver's seat.

72. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant American Honda Motor Co., Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XVII
(Strict Liability-Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

73. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle which contained component parts, namely, the driver's seat, which was defective and inherently dangerous to the user, including plaintiff Alexis Geier, in that said systems could and did cause serious injuries to their user when the vehicle was involved in an impact or collision.

74. Defendant Honda of America Manufacturing, Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the driver's seat.

75. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda of America Manufacturing, Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda of America Manufacturing, Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XVIII
(Strict Liability-Honda Motor Co., Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

76. Defendant Honda Motor Co., Ltd. designed, manufactured, assembled, tested, assembled and marketed a vehicle which contained component parts, namely, the driver's seat, which was defective and inherently dangerous to the user, including plaintiff Alexis Geier in that said systems could and did cause serious injuries to their user when the vehicle was involved in an impact or collision.

77. Defendant Honda Motor Co., Ltd. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the driver's seat.

78. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda Motor Co., Ltd., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda Motor Co., Ltd. in the amount of $500,000.00 plus costs and interest.

COUNT XIX
(Negligence - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

79. Defendant American Honda Motor Co., Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord without adequate safety devices, including, but not limited to airbags and negligently failed to warn the public, including plaintiff Alexis Geier, of the absence of such safety devices.

80. As a direct and proximate result of defendant American Honda Motor Co., Inc.'s negligence, plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant American Honda Motor Co., Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XX
(Negligence - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

81. Defendant Honda of America Manufacturing, Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord without adequate safety devices, including, but not limited to airbags and negligently failed to warn the public, including plaintiff Alexis Geier, of the absence of such safety devices.

82. As a direct and proximate result of defendant Honda of America Manufacturing, Inc.'s negligence, plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda of America Manufacturing, Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XXI
(Negligence - Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

83. Defendant Honda Motor Co. Ltd. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord without adequate safety devices, including, but not limited to airbags and negligently failed to warn the public, including plaintiff Alexis Geier, of the absence of such safety devices.

84. As a direct and proximate result of defendant Honda Motor Co. Ltd.'s negligence, plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda Motor Co. Ltd. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XXII

(Negligence - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

85. Defendant American Honda Motor Co., Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord without adequate safety devices, including, but not limited to airbags and negligently failed to warn the public, including plaintiff Alexis Geier, of the absence of such safety devices.

86. As a direct and proximate result of defendant American Honda Motor Co., Inc.'s negligence, plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of

$500,000.00 plus costs and interest.

COUNT XXIII

(Negligence - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

87. Defendant Honda of America Manufacturing, Inc. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord without adequate safety devices, including, but not limited to airbags and negligently failed to warn the public, including plaintiff Alexis Geier, of the absence of such safety devices.

88. As a direct and proximate result of defendant Honda of America Manufacturing, Inc.'s negligence, plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda of America Manufacturing, Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XXIV
(Negligence - Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation in the foregoing Introductory Paragraphs 1 through 21 of this Complaint in their entirety and as if fully set forth herein and incorporate them by reference and further state as follows:

89. Defendant Honda Motor Co. Ltd. breached its duty of care to plaintiff Alexis Geier in that it negligently designed, manufactured, assembled, tested, inspected, researched, installed, marketed and distributed the 1987 Honda Accord without adequate safety devices, including, but not limited to airbags and negligently failed to warn the public, including plaintiff Alexis Geier, of the absence of such safety devices.

90. As a direct and proximate result of defendant Honda Motor Co. Ltd.'s negligence, plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XXV
(Breach of Warranty - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

91. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, inspected, tested and

distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle was of merchantable quality and was fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

92. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant American Honda Motor Co., Inc. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

93. Defendant American Honda Motor Co., Inc. breached its warranty in that the 1987 Honda Accord was not safe for their intended use or of merchantable quality as warranted by defendant Honda Motor Co. Ltd. in that it did not contain a passive restraint system, including, but not limited to airbags, which would reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, did cause serious injuries to plaintiff Alexis Geier.

94. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant American Honda Motor Co., Inc., plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant American Honda Motor Co., Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XXVI
(Breach of Warranty - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

95. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle was of merchantable quality and was fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

96. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant Honda of America Manufacturing, Inc. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

97. Defendant Honda of America Manufacturing, Inc. breached its warranty in that the 1987 Honda Accord was not safe for their intended use or of merchantable quality as warranted by defendant Honda of America Manufacturing, Inc. in that it did not contain a passive restraint system, including, but not limited to airbags, which would reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, did cause serious injuries to plaintiff Alexis Geier.

98. As a direct and proximate result of the aforesaid

breach of express and implied warranties of defendant Honda of America Manufacturing, Inc., plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda of America Manufacturing, Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XXVII
(Breach of Warranty-Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

99. Defendant Honda Motor Co. Ltd. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle was of merchantable quality and was fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

100. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant Honda Motor Co. Ltd. in using the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

101. Defendant Honda Motor Co. Ltd. breached its warranty in that the 1987 Honda Accord was not safe for its intended use or of merchantable quality as warranted by

defendant Honda Motor Co. Ltd. in that it did not contain a passive restraint system, including, but not limited to airbags, which would reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, did cause serious injuries to plaintiff Alexis Geier.

102. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant Honda Motor Co. Ltd., plaintiff Alexis Geier was damaged as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda Motor Co. Ltd. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XXVIII

(Breach of Warranty - American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

103. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle was of merchantable quality and was fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

104. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant American Honda Motor Co., Inc. in

using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

105. Defendant American Honda Motor Co., Inc. breached its warranty in that the 1987 Honda Accord was not safe for their intended use or of merchantable quality as warranted by defendant Honda Motor Co. Ltd. in that it did not contain a passive restraint system, including, but not limited to airbags, which would reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, did cause serious injuries to plaintiff Alexis Geier.

106. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant American Honda Motor Co., Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XXIX

(Breach of Warranty - Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

107. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, inspected, tested and

distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle was of merchantable quality and was fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

108. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant Honda of America Manufacturing, Inc. in using the driver's seating and restraint systems of the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

109. Defendant Honda of America Manufacturing, Inc. breached its warranty in that the 1987 Honda Accord was not safe for their intended use or of merchantable quality as warranted by defendant Honda of America Manufacturing, Inc. in that it did not contain a passive restraint system, including, but not limited to airbags, which would reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, did cause serious injuries to plaintiff Alexis Geier.

110. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant Honda of America Manufacturing, Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda of America Manufacturing, Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XXX
(Breach of Warranty-Honda Motor Co. Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows:

111. Defendant Honda Motor Co. Ltd. designed, manufactured, assembled, inspected, tested and distributed the aforementioned vehicle, including its component parts, and warranted same to the public, including plaintiff Alexis Geier, that said vehicle was of merchantable quality and was fit for the purposes for which they were intended, namely to reduce the risk of harm in the event of an impact or collision.

112. Plaintiff Alexis Geier relied upon the skill and judgment of Defendant Honda Motor Co. Ltd. in using the 1987 Honda Accord and, at the time of the collision, was using the lap and shoulder belt installed on the vehicle in the foreseeable intended manner.

113. Defendant Honda Motor Co. Ltd. breached its warranty in that the 1987 Honda Accord was not safe for its intended use or of merchantable quality as warranted by defendant Honda Motor Co. Ltd. in that it did not contain a passive restraint system, including, but not limited to airbags, which would reduce the risk of harm in the event of impact or collision, and in fact, in the circumstances herein alleged, did cause serious injuries to plaintiff Alexis Geier.

114. As a direct and proximate result of the aforesaid breach of express and implied warranties of defendant Honda Motor Co. Ltd., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XXXI
(Strict Liability-American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

115. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle without incorporating therein the state of the art of the automotive industry in the science and engineering of passive restraint systems, including but not limited to airbags; deliberately and intentionally excluded certain passive restraint systems even though these systems were necessary for the manufacture of a safe vehicle; failed to recall the plaintiff's vehicle and retrofit the vehicle with necessary restraint systems.

116. Defendant American Honda Motor Co., Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the vehicle.

117. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant American Honda Motor Co., Inc., plaintiff Alexis Geier suffered damages as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant American

Honda Motor Co., Inc. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XXXII
(Strict Liability-Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

118. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle without incorporating therein the state of the art of the automotive industry in the science and engineering of passive restraint systems, including but not limited to airbags; deliberately and intentionally excluded certain passive restraint systems even though these systems were necessary for the manufacture of a safe vehicle; failed to recall the plaintiff's vehicle and retrofit the vehicle with necessary restraint systems.

119. Defendant Honda of America Manufacturing, Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the vehicle.

120. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda of America Manufacturing, Inc., plaintiff Alexis Geier suffered damages as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda of America Manufacturing, Inc. in the amount of $10,000,000.00

as compensatory damages plus cost and interest, and in the amount of $10,000,000.00 as punitive damages.

COUNT XXXIII
(Strict Liability-Honda Motor Co., Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

121. Defendant Honda Motor Co., Ltd. designed, manufactured, assembled, tested, assembled and marketed a vehicle without incorporating therein the state of the art of the automotive industry in the science and engineering of passive restraint systems, including but not limited to airbags; deliberately and intentionally excluded certain passive restraint systems even though these systems were necessary for the manufacture of a safe vehicle; failed to recall the plaintiff's vehicle and retrofit the vehicle with necessary restraint systems

122. Defendant Honda Motor Co., Ltd. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the rear passenger restraint system.

123. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda Motor Co., Ltd., plaintiff Alexis Geier suffered damages as set forth in paragraph 20.

WHEREFORE, the premises considered, plaintiff Alexis Geier demands judgment against defendant Honda Motor Co., Ltd. in the amount of $10,000,000.00 as compensatory damages plus cost and interest, and in the

amount of $10,000,000.00 as punitive damages.

COUNT XXXIV
(Strict Liability-American Honda Motor Co., Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

124. Defendant American Honda Motor Co., Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle without incorporating therein the state of the art of the automotive industry in the science and engineering of passive restraint systems, including but not limited to airbags; deliberately and intentionally excluded certain passive restraint systems even though these systems were necessary for the manufacture of a safe vehicle; failed to recall the plaintiff's vehicle and retrofit the vehicle with necessary restraint systems.

125. Defendant American Honda Motor Co., Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the vehicle.

126. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant American Honda Motor Co., Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

COUNT XXXV
(Strict Liability-Honda of America Manufacturing, Inc.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

127. Defendant Honda of America Manufacturing, Inc. designed, manufactured, assembled, tested, assembled and marketed a vehicle without incorporating therein the state of the art of the automotive industry in the science and engineering of passive restraint systems, including but not limited to airbags; deliberately and intentionally excluded certain passive restraint systems even though these systems were necessary for the manufacture of a safe vehicle; failed to recall the plaintiff's vehicle and retrofit the vehicle with necessary restraint systems.

128. Defendant Honda of America Manufacturing, Inc. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the vehicle.

129. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda of America Manufacturing, Inc., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against defendant Honda of America Manufacturing, Inc., in the amount of $500,000.00 plus costs and interest.

COUNT XXXVI
(Strict Liability-Honda Motor Co., Ltd.)

Plaintiffs repeat and reallege each and every allegation contained in the foregoing paragraphs 1 through 21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference and further state as follows;

130. Defendant Honda Motor Co., Ltd. designed, manufactured, assembled, tested, assembled and marketed a vehicle without incorporating therein the state of the art of the automotive industry in the science and engineering of passive restraint systems, including but not limited to airbags; deliberately and intentionally excluded certain passive restraint systems even though these systems were necessary for the manufacture of a safe vehicle; failed to recall the plaintiff's vehicle and retrofit the vehicle with necessary restraint systems

131. Defendant Honda Motor Co., Ltd. failed to warn the public, including Alexis Geier, of the defective and inherently dangerous condition of the rear passenger restraint system.

132. As a direct result of the aforesaid unreasonable and inherently dangerous condition of said vehicle manufactured by defendant Honda Motor Co., Ltd., plaintiffs William Geier and Claire Geier were damaged as set forth in paragraph 21.

WHEREFORE, the premises considered, plaintiffs William Geier and Claire Geier demand judgment against

defendant American Honda Motor Co., Inc. in the amount of $500,000.00 plus costs and interest.

CADEAUX & TAGLIERI, P.C.

/s/ James W. Taglieri
James W. Taglieri #229880
Attorney for Plaintiff
1100 Connecticut Avenue, N.W.
Suite 800
Washington, D.C. 20036
Telephone (202) 785-3373

JURY DEMAND

Plaintiff herein demands a trial by a jury as to all issues involved herein.

/s/ James W. Taglieri
James W. Taglieri
Attorney for Plaintiff

JWT/fan

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

ALEXIS GEIER, et al.,	)	
	)	
Plaintiffs,	)	
	)	
v.	)	C.A. No. 1:95CV00064
	)	
AMERICAN HONDA MOTOR CO., INC., et al.,	)	
	)	
Defendants.	)	

ANSWER

Defendant American Honda Motor Co., Inc. ("American Honda"), by counsel, hereby answers the Complaint as follows:

In answer to the numbered paragraphs of the Complaint, American Honda states as follows:

1. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 1 and, therefore, denies those allegations and demands strict proof thereof.

2. The allegations in paragraph 2 are legal conclusions and no response is required. To the extent a response is required, American Honda denies those allegations and demands strict proof thereof.

3. American Honda admits that Honda Motor Co., Ltd. is a foreign corporation headquartered in Tokyo, Japan. The remaining allegations in paragraph 3 are legal conclusions

and no response is required. To the extent a response is required, American Honda denies the allegations in paragraph 3 and demands strict proof thereof.

4. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 4, and, therefore, denies those allegations and demands strict proof thereof.

5. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 5, and, therefore, denies those allegations and demands strict proof thereof.

6. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 6, and, therefore, denies those allegations and demands strict proof thereof.

7. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 7, and, therefore, denies those allegations and demands strict proof thereof.

8. The allegations in paragraph 8 are legal conclusions and no response is required. To the extent a response is required, American Honda specifically denies that it designs, manufactures, assembles, installs, or tests passenger seating and restraint systems in 1987 Honda Accords. American Honda admits only those duties that arise as a matter of express agreement or as a matter of law. American Honda states that the passenger seating and restraint system for the driver's seating position of the 1987 Honda Accord was reasonably safe for use by its occupants, including plaintiff Alexis Geier. American Honda denies the remaining

allegations in paragraph 8 and demands strict proof thereof.

9. The allegations in paragraph 9 are vague and ambiguous because the terms "failure" and "emergency" are not defined and American Honda is therefore unable to respond to those allegations. In addition, to the extent those allegations are legal conclusions, no response is require[illegible] To the extent a response is required, American Honda denies those allegations and demands strict proof thereof.

10. The allegations in paragraph 10 are legal conclusions and no response is required. To the extent a response is required, American Honda specifically denies that it designs or manufactures motor vehicles. American Honda admits only those duties that arise as a matter of express agreement or as a matter of law. American Honda denies the remaining allegations in paragraph 10 and demands strict proof thereof.

11. The allegations in paragraph 11 are legal conclusions and no response is required. To the extent a response is required, American Honda specifically denies that it designs or manufactures motor vehicles. American Honda admits only those duties that arise as a matter of express agreement or as a matter of law. American Honda denies the remaining allegations in paragraph 11 and demands strict proof thereof.

12. The allegations in paragraph 12 are legal conclusions and no response is required. To the extent a response is required, American Honda specifically denies that it designs or manufactures motor vehicles. American Honda admits only those duties that arise as a matter of express agreement or as a matter of law. American Honda denies the remaining allegations in paragraph 12 and demands strict proof

thereof.

13. The allegations in paragraph 13 are vague and ambiguous because the term "collision" is not defined and American Honda is therefore unable to respond to those allegations. To the extent the allegations in paragraph 13 are legal conclusions, no response is required. To the extent a response is required, American Honda denies the allegations in paragraph 13 and demands strict proof thereof.

14. American Honda denies the allegations in paragraph 14 and demands strict proof thereof.

15. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 15 and, therefore, denies those allegations and demands strict proof thereof.

16. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 16 and, therefore, denies those allegations and demands strict proof thereof.

17. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 17 and, therefore, denies those allegations and demands strict proof thereof.

18. American Honda denies the allegations in paragraph 18 and demands strict proof thereof.

19. American Honda denies the allegations in paragraph 19 and demands strict proof thereof.

20. American Honda denies the allegations in

paragraph 20 and demands strict proof thereof.

21. American Honda denies the allegations in paragraph 21 and demands strict proof thereof.

COUNT I

(Negligence - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-21 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

22. The allegations in paragraph 22 are legal conclusions and no response is required. To the extent a response is required, American Honda admits only those duties that arise as a matter of express agreement or as a matter of law. American Honda denies the remaining allegations in paragraph 22 and demands strict proof thereof.

23. American Honda denies the allegations in paragraph 23 and demands strict proof thereof.

24. American Honda denies the allegations in paragraph 24 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count I of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT II

(Negligence - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-24 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count II are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 25-27 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count II of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT III

(Negligence - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-27 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count III are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 28-30 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count III of the Complaint be dismissed with prejudice,

that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT IV

(Negligence - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-30 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

31. American Honda denies the allegations in paragraph 31 and demands strict proof thereof.

32. American Honda denies the allegations in paragraph 32 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count IV of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT V

(Negligence - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-32 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count V are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 33-34 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count V of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT VI

(Negligence - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-34 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count VI are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 35-36 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count VI of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT VII

(Breach of Warranty - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-36 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

37. American Honda denies that it designed, manufactured, assembled, inspected or tested the 1987 Honda Accord identified in paragraph 4 of plaintiffs' Complaint.

American Honda admits that it distributed the vehicle. American Honda admits only its express warranties and those warranties that arise as a matter of law. American Honda denies the remaining allegations in paragraph 37 and demands strict proof thereof.

38. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 38 and, therefore, denies those allegations and demands strict proof thereof.

39. American Honda denies the allegations in paragraph 39 and demands strict proof thereof.

40. American Honda denies the allegations in paragraph 40 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count VII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT VIII

(Breach of Warranty - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-40 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count VIII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 41-44 and demands strict proof

thereof.

WHEREFORE, American Honda respectfully requests that Count VIII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT IX

(Breach of Warranty - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-44 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count IX are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 45-48 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count IX of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT X

(Breach of Warranty - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-48 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

49. American Honda denies that it designed, manufactured, assembled, inspected, or tested the vehicle identified in paragraph 4 of plaintiffs' Complaint. American Honda admits that it distributed the vehicle. American Honda admits only its express warranties and warranties that arise as a matter of law. American Honda denies the remaining allegations in paragraph 49 and demands strict proof thereof.

50. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 50 and, therefore, denies those allegations and demands strict proof thereof.

51. American Honda denies the allegations in paragraph 51 and demands strict proof thereof.

52. American Honda denies the allegations in paragraph 52 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count X of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XI

(Breach of Warranty - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1- 52 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XI are not directed towards American Honda; therefore, no response is required. However,

to the extent a response is required, American Honda denies the allegations in paragraphs 53-56 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XI of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XII

(Breach of Warranty - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-56 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 57-60 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XIII

(Strict Liability - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1- 60 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

61. American Honda denies the allegations in paragraph 61 and demands strict proof thereof.

62. American Honda denies the allegations in paragraph 62 and demands strict proof thereof.

63. American Honda denies the allegations in paragraph 63 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XIII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XIV

(Strict Liability - Honda of America Manufacturing, Inc..)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-63 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XIV are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 64-66 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XIV of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XV
(Strict Liability - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-66 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XV are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 67-69 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XV of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XVI
(Strict Liability - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-69 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

70. American Honda denies the allegations in paragraph 70 and demands strict proof thereof.

71. American Honda denies the allegations in paragraph 71 and demands strict proof thereof.

72. American Honda denies the allegations in paragraph 72 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XVI of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XVII
(Strict Liability - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-72 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XVII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 73-75 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XVII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XVIII
(Strict Liability - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-75 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XVIII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the

allegations in paragraphs 76-78 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XVIII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XIX

(Negligence - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-78 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

79. American Honda denies the allegations in paragraph 79 and demands strict proof thereof.

80. American Honda denies the allegations in paragraph 80 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XIX of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XX

(Negligence - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-80 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XX are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 81-82 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XX of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXI

(Negligence - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-82 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXI are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 83-84 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXI of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXII
(Negligence - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-84 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

85. American Honda denies the allegations in paragraph 85 and demands strict proof thereof.

86. American Honda denies the allegations in paragraph 86 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXIII
(Negligence - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-86 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXIII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 87-88 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXII of the Complaint be dismissed with prejudice,

that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXIV
(Negligence - Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-88 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXIV are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 89-90 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXIV of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXV
(Breach of Warranty - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-90 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

91. American Honda specifically denies that it designed, manufactured, assembled, inspected, or tested the vehicle described in paragraph 4 of plaintiffs' Complaint. American Honda admits that it distributed the vehicle. American Honda admits only its express warranties and

warranties that arise as a matter of law. American Honda denies the remaining allegations in paragraph 91 and demand strict proof thereof.

92. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 92 and, therefore, denies those allegations and demands strict proof thereof.

93. American Honda denies the allegations in paragraph 93 and demands strict proof thereof.

94. American Honda denies the allegations in paragraph 94 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXV of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXVI

(Breach of Warranty - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-94 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXVI are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 95-98 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXVI of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXVII

(Breach of Warranty - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-98 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXVII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 99-102 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXVII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXVIII

(Breach of Warranty - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-102 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

103. American Honda specifically denies that it designed, manufactured, assembled, inspected, or tested the vehicle described in paragraph 4 of plaintiffs' Complaint.

American Honda admits that it distributed the vehicle. American Honda admits only its express warranties and warranties that arise as a matter of law. American Honda denies the remaining allegations in paragraph 91 and demand strict proof thereof.

104. American Honda is without sufficient information or knowledge to admit or deny the allegations in paragraph 104 and, therefore, denies those allegations and demands strict proof thereof.

105. American Honda denies the allegations in paragraph 105 and demands strict proof thereof.

106. American Honda denies the allegations in paragraph 106 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXVIII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXIX

(Breach of Warranty - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-106 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXIX are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 107-110 and demands strict proof

thereof.

WHEREFORE, American Honda respectfully requests that Count XXIX of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXX

(Breach of Warranty - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-110 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXX are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 111-114 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXX of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXXI

(Strict Liability - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-114 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

115. American Honda denies the allegations in

paragraph 115 and demands strict proof thereof.

116. American Honda denies the allegations in paragraph 116 and demands strict proof thereof.

117. American Honda denies the allegations in paragraph 117 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXXI of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXXII

(Strict Liability - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-117 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXXII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 118-120 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXXII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXXIII

(Strict Liability - Honda Motor Co., Ltd.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-120 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXXIII are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 121-123 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXXIII of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXXIV

(Strict Liability - American Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-123 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

124. American Honda denies the allegations in paragraph 124 and demands strict proof thereof.

125. American Honda denies the allegations in paragraph 125 and demands strict proof thereof.

126. American Honda denies the allegations in paragraph 126 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXXIV of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXXV

(Strict Liability - Honda of America Manufacturing, Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-126 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXXV are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda denies the allegations in paragraphs 127-129 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXXV of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

COUNT XXXVI

(Strict Liability - Honda Motor Co., Inc.)

American Honda repeats and realleges each and every response to the allegations in the foregoing introductory paragraphs 1-129 of this Complaint in their entirety as if fully set forth herein and incorporate them by reference.

The allegations in Count XXXVI are not directed towards American Honda; therefore, no response is required. However, to the extent a response is required, American Honda

denies the allegations in paragraphs 130-132 and demands strict proof thereof.

WHEREFORE, American Honda respectfully requests that Count XXXVI of the Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

American Honda hereby denies any and all allegations not addressed specifically above.

AFFIRMATIVE DEFENSES

American Honda hereby raises the following affirmative defense to plaintiffs' Complaint.

Defense No. 1

(Failure to State a Claim)

Plaintiff's Complaint fails to state a claim upon which relief can be granted.

Defense No. 2

(Abuse or Misuse of Product)

All of the injuries and damages alleged by plaintiff were caused by abuse and/or misuse of the subject vehicle by plaintiff, plaintiff's decedent or third parties for whom American Honda is not and was not responsible.

Defense No. 3
(Contributory Negligence)

All of the injuries and damages alleged by plaintiff were caused by the contributory negligence of plaintiff, plaintiff's decedent or third parties for whom American Honda is not and was not responsible.

Defense No. 4
(Intervening or Superseding Cause)

All of the injuries and damages alleged by plaintiff were caused by the intervening or superseding acts and/or omissions of plaintiff, plaintiff's decedent and/or third parties for whom American Honda is not and was not responsible.

Defense No. 5
(No Proximate Cause)

There exists no proximate causation between American Honda's alleged acts and omissions and the alleged injuries and damages claimed by plaintiff, thereby barring any recovery against American Honda.

Defense No. 6
(Failure to Comply With Warranty)

The plaintiff or other third parties failed to comply with the terms of applicable warranties thereby barring any recovery from American Honda for any purported breach of warranty.

Defense No. 7
(Limitations)

Plaintiff's claims are barred by the Statute of Limitations.

Defense No. 8
(Alteration or Modification)

All of the injuries or damages alleged by plaintiff were caused by the alteration or modification of the subject vehicle by plaintiff, plaintiff's decedent or third parties for whom American Honda is not and was not responsible.

Defense No. 9
(Assumption of the Risk)

The injuries or damages alleged by plaintiff were caused in whole or in part by the decedent's assumption of the risk.

Defense No. 10
(Preemption)

Plaintiffs' claims are preempted by Federal law.

Defense No. 11
(Statutory Defenses)

American Honda pleads all defenses available under the laws of the District of Columbia.

WHEREFORE, American Honda hereby respectfully requests that the entire Complaint be dismissed with prejudice, that it be awarded its costs and attorneys' fees, and such other and further relief as this Court deems just.

Respectfully submitted,

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